Learner code of conduct policy

Policy Statement

Bow Valley College is committed to establishing and sustaining a positive and dynamic learning and working environment within our diverse College community. Actions of all learners are expected to exemplify our values of respect, inclusion, creativity, teamwork, and resilience.

Bow Valley College learners must be fit to learn/participate. Learners must not engage in conduct that:

1. Adversely impacts the ability or freedoms of other persons to pursue their studies, research, or work in the College or to participate in the life of the College;
2. Constitutes harassment or discrimination against any member of the College community;
3. Interferes with the operation of the College or causes damage to College property or environment;
4. Is violent, threatening or endangers the health, safety or well-being of others;
5. A reasonable person would see as inappropriate;
6. Violates federal, provincial or municipal laws or this Policy, the associated Procedure or other College policies and procedures; or
7. Contravenes a warning or sanction imposed under this Policy or its associated Procedure or other College policies and procedures.

Learners who fail to abide by the standards of this Policy may be subject to disciplinary action, up to and including withdrawal from the College.

Purpose

This Policy provides a framework to ensure that the College operates in a safe, comfortable, consistent and equitable manner and outlines the general standard of conduct expected of learners at the College.

The College is a diverse and inclusive environment. This Policy is to be read and applied with sensitivity to each learner's unique personal experience including, but not limited to and where appropriate, experience related to a learner's culture and history, including Indigenous history and culture.

Scope

This Policy applies to the non-academic conduct of Bow Valley College learners regardless of location or modality, which is determined to have a real and substantial link to the College.

Principal Objectives

1. Affirm that the College community has the right to expect behaviour that follows this Policy.
2. Affirm that learners have the responsibility to behave in accordance with this Policy.
3. Provide the College community with direction on seeking assistance regarding concerns with respect to this Policy.
4. Ensure that this Policy and its associated Procedure are made available and accessible to the College community through appropriate communication methods such as, but not limited to, the employee portal and the College website.
5. Engage in appropriate and consistent procedures for investigation and adjudication that ensure reasonable fairness and due process.
6. Maintain the confidentiality of learner conduct records in accordance with College policy and procedure.

Classification: General

7. Allegations that are made without reasonable justification or that are vexatious or malicious are prohibited and will be addressed according to College policy and procedure.
8. Contribute to a campus atmosphere where this Policy is approached with a wholistic lens that examines the unique personal experience of relevant College community members for the purpose of understanding conduct, understanding the impact of conduct and determining appropriate College action and responses.
9. Work proactively to engage and support learners who demonstrate behaviours that have the potential to impede their own or others' fitness to learn/participate.

Compliance

Members of the college community are expected to adhere to the policies, procedures, and standards established by the college. These policies are designed to foster a safe, respectful, and inclusive environment that supports learning, teaching, and professional integrity.

Non-compliance may create risk for the college and will be addressed accordingly through applicable college policies, procedures and contracts. This may result in disciplinary action, up to and including termination for employees, and expulsion for students.

Definitions

Board of Governors:
Members of the governing body of the College who have been appointed by an Order in Council of the Province of Alberta or by Ministerial Order by the Minister responsible for Post-Secondary Education, in accordance with the Alberta Post-Secondary Learning Act.

College community:
All learners, employees, Elders, independent contractors, suppliers, volunteers, visitors and members of the Board of Governors of the College while they are either on or using College property, participating in College programs and activities or involved in the business or affairs of the College, on or off College premises.

Discrimination:
A distinction, whether intentional or not, which is based on any personal characteristic of a person or group based on legally protected grounds and which distinction:

1. has the effect of imposing burdens, obligations or disadvantages on a person or group not imposed upon others; or
2. withholds or limits access to opportunities, benefits and advantages available to other people or groups, except distinctions which are either:
3. reasonable and justifiable in the circumstances; or
4. intended to promote and foster equality and reasonably likely to achieve that result.

Fit to learn/participate:
Ability to safely and appropriately engage in College sanctioned activities.

Harassment:
Unwelcome verbal, written, electronic or physical conduct that is demeaning, intimidating, threatening or abusive. The conduct may negatively impact or result in the loss of dignity of the targeted person. Harassment can be one incident or a series of incidents.

Classification: General

Learner:
A person who is currently registered as a learner at the College whether or not for credit. For the purposes of this document, "learner" shall be used synonymously for applicants and learners unless otherwise noted.

Learner conduct record:
Learner Code of Conduct Policy and Procedure reports and other documentation including emails outlining violations of the Policy that are held, securely, by Learner Success Services, and separate from the permanent academic record. Only in cases where a sanction involves suspension, expulsion, or campus banning may the two records be joined. In all other cases, academic and disciplinary records are held separately.

Real and substantial link:
The inferred connection a reasonable person would make between learner conduct and the College.

Violence:
Attempted, threatened or actual conduct of a person that is intended to cause, causes, or is likely to cause, physical, emotional or psychological trauma or injury.

Classification: General

Data Sheet

Accountable Officer
The Executive Team member responsible for Student Services

Responsible Officer
Director, Student Services

Approval

Contact Area
Student Services

Relevant Dates

Approved	Board of Governors: BOG210128-09
Effective	January 7, 2021 April 26, 2014
Next review	January 2024
Modification history	• Accountable and Responsible Officer updated 4-21-2023 • Rebranded November 2021 • Policy Committee reviewed and updated numbering format January 2022
Verified By	Office of the President, April 2023*

Associated Policy(ies)
Code of Conduct Policy of Bow Valley College #200-1-13
Respectful Workplace Policy #200-1-11
Learner Appeals Policy #500-1-12
Learner Records and Information Policy #200-1-9

Directly Related Procedure(s)
Code of Conduct Protected Disclosure Procedure #200-1-13
Respectful Workplace Procedure #200-1-11
Code of Conduct Procedure for Learners #500-1-1

Related Legislation
Including but not limited to:
Alberta Human Rights Act
Criminal Code of Canada
Occupational Health and Safety Act
Freedom of Information and Privacy Protection Act

Classification: General